

7.

CASE #	CASE NAME	HEARING NAME
CVPS2507128	SHANNON VS DHSE, INC.	MOTION FOR RECONSIDERATION OF MOTION TO COMPEL AND ORDER FOR SANCTIONS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Motion For Reconsideration

A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.’” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

Here, there are no new or different facts, circumstances or law that would permit the court to change its ruling from March 23, 2026.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2507734	VOKOUN VS TOYOTA MOTOR CORPORATION, A JAPANESE CORPORATION	MOTION FOR RECONSIDERATION OF DENIAL OF MOTION TO QUASH BY ZAYED SAIF ALI SAIF ALQUBAISI

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence

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The court previously granted an opportunity for a hearing on the underlying motion to quash services of summons on this matter, moving party elected not to appear. No explanation has been provided why the alleged “new information” could not have been produced earlier.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2600463	VILLALOBOS BUELNA VS ESTATE OF STEPHANY REYES (DECEASED)	SPECIAL DEMURRER ON COMPLAINT OF ANGEL VILLALOBOS BUELNA AS TO CAUSE(S) OF ACTION BY MARRIOTT HOTEL SERVICES, LLC [ERRONEOUSLY SUED AS MARRIOTT INTERNATIONAL, INC.]

Tentative Ruling: Sustained.

Plaintiff granted leave to file 1st Amended Complaint within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

On January 8, 2025, decedent Stephany Reyes (“Reyes”) consumed an excessive quantity of alcohol at the JW Marriott Desert Springs Resort and Spa hotel bar on Country Club Drive in Palm Desert. Defendant Marriott Hotel Services (“Marriott”) is alleged to have owned, operated, managed, or controlled the bar. Reyes became severely intoxicated, exhibiting slurred speech, imbalance, confusion, and loss of motor coordination; bartenders continued serving her in rapid succession and no manager or supervisor intervened. Marriott employees, including valet or other on-site personnel, then affirmatively assisted her to her vehicle, opening the door, helping her inside, and permitting her to drive off. Reyes drove the wrong way on Country Club Drive at high speed and struck Plaintiffs’ Angel Villalobos Buelna and Jeremy Loreda (“Plaintiffs”) vehicle head-on, causing them catastrophic injuries.

On January 6, 2026, Plaintiffs filed their complaint alleging five (5) causes of action: 1) Negligence (Motor Vehicle) (against Estate of Reyes only); 2) Negligent Entrustment (against Does 1-100); 3) General Negligence; 4) Negligent Hiring, Supervision, and Retention; and 5) Voluntary Undertaking.